RATIO / CASE READING SHEET

Hong Kong Special Administrative Region v. Bao Choy Yuk-ling

TrialWatch (Clooney Foundation for Justice) | hong-kong-special-administrative-region-v-bao-choy-yuk-ling | China (Hong Kong SAR) | 2021

Extractive reading sheet | local source passages; no model conclusions

Source excerpts are reading leads, not a case summary or established findings. Read the surrounding passages and identify the speaker before relying on them.

Presumption of innocence wording

[...] demonstrate Bao Choy’s intent to commit an offense. Under human rights law, the presumption of innocence places on the prosecution the burden to prove the guilt of the accused person beyond a reasonable doubt.130 In this case, the Prosecution’s argument was conclusory and did not prove the individual elements of the offense, in particular that Bao [...]

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Charge / offence wording

[...] s released in July 2020; on November 3, 2020, authorities arrested Bao Choy and charged her with two counts of “knowingly making a false statement” under the Road Traffic Ordinance in order to access the vehicle information. She was convicted after a one -day trial and sentenced to pay a fine of HKD 6,000 (USD $775). RTHK, founded in [...]

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Sentencing / detention wording

[...] itiative with the mission of exposing injustice, helping to free those unjustly detained and promoting the rule of law around the world. TrialWatch monitors criminal trials glob ally against those who are most vulnerable — including journalists, protesters, women, LGBTQ+ persons and minorities — and advocates for the rights of the [...]

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Source: https://cfj.org/wp-content/uploads/2023/07/Bao-Choy_July-2021_Fairness-Report-1.pdf

Source text SHA-256: 53911a09cbf4e267 | Saved original available in the local case library